

24CHCV04086 24CHCV04086

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Case Number: 24CHCV04086 Hearing Date: July 1, 2026 Dept: F49

Dept. F49

Date: 7/1/26

Case Name: Elizabeth Chacon Flores vs. Los Angeles

Unified School District; Olivia Alvarez Meza; and Does 1-50

Case No. 24CHCV04086

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 1, 2026

MOTION TO COMPEL

DEPOSITION; REQUESTS FOR SANCTIONS

Los Angeles Superior

Court Case No. 24CHCV04086

Motion filed: 5/6/26

MOVING PARTY: Plaintiff Elizabeth Chacon Flores

RESPONDING PARTY: Defendant Olivia Alvarez Meza

NOTICE: OK

RELIEF REQUESTED: An order from this Court compelling the deposition of Defendant Olivia Alvarez Meza and awarding sanctions in the amount of \$4,092.00.

TENTATIVE RULING: The Motion to Compel Defendant Olivia Alvarez Meza to Appear and Testify at Deposition is GRANTED. The request for sanctions is DENIED.

BACKGROUND

This action arises from injuries sustained by Plaintiff Elizabeth Chacon Flores ("Plaintiff") when a motor vehicle owned and operated by Los Angeles Unified School District ("LAUSD") allegedly collided with Plaintiff's vehicle. On November 6, 2024, Plaintiff initiated this action. Subsequently, on January 24, 2025, Plaintiff filed the operative First Amended Complaint ("FAC") against Defendants LAUSD, Olivia Alvarez Meza ("Meza"), and Does 1 through 50, alleging the following causes of action: (1) motor vehicle, (2) general negligence, (3) negligence – vicarious liability, and (4) negligence – negligent hiring and supervision. On March 4, 2025, LAUSD and Meza filed a joint Answer to the FAC.

On May 6, 2026, Plaintiff filed the instant motion to compel Meza's deposition (the "Motion").

On June 17, 2026, Meza filed an Opposition.

On June 24, 2026, Plaintiff filed a Reply.

ANALYSIS

"Any party may obtain discovery ... by taking ... the oral deposition of any person, including any party to the action." (Code Civ. Proc., § 2025.010.)

To

compel the deposition of a party to an action or its officer, director, managing agent, or employee, the deposing party need only serve a notice in compliance with Code of Civil Procedure section 2025.240. (Code Civ. Proc., § 2025.280, subd. (a).) Nothing further is needed. If, after service of the deposition notice, the deponent fails to appear “without having served a valid objection under Section 2025.410,” the deposing party may move for an order compelling the deponent’s attendance and testimony. (Code Civ. Proc., § 2025.450, subd. (a).)

A.

Meet and Confer

Where

a deponent has failed to attend the deposition, a motion to compel must be accompanied by a declaration stating that the petitioner has contacted the deponent to inquire about non-appearance. (Code Civ. Proc., § 2025.450, subd. (b).) “Implicit in the requirement that counsel contact the deponent to inquire about the nonappearance is a requirement that counsel listen to the reasons offered and make a good faith attempt to resolve the issue,” including by rescheduling. (Leko v. Cornerstone Bldg. Inspection Serv. (2001) 86 Cal. App. 4th 1109, 1124.)

Here, Plaintiff’s counsel initially noticed a deposition scheduled for January 9, 2026, a date on which Meza’s counsel indicated Meza would be available to be deposed. (Booker Decl., ¶¶ 8-9, Exh. 2.) Meza’s counsel objected to the deposition notice on December 31, 2025. (Id., ¶ 10.) Plaintiff’s counsel then served an amended deposition notice, noticing a deposition scheduled for February 5, 2026. (Id., ¶ 11.) After receiving an objection to the new date, Plaintiff’s counsel exchanged emails with Meza’s counsel. (Id., ¶¶ 18.) Based on this exchange, Plaintiff’s counsel noticed a deposition to take place on March 31, 2026. (Id., ¶ 19.) On March 26, 2026, Meza’s counsel again objected to the deposition notice. (Id., ¶ 21.) Meza did not appear for the March 31, 2026 deposition. (Id., ¶ 24.)

Meza contends that the foregoing communications do not establish a reasonable and good faith attempt to resolve the scheduling issue. (Opp’n, at p. 5.) Meza asserts that the deposition scheduled for January 9, 2026 did not proceed because Plaintiff—not Meza—cancelled it the day before the

deposition was to take place, and the subsequent February 5, 2026 deposition was noticed without conferring with Meza. (Id., at p. 2; Malekan Decl., ¶ 4.) Meza avers that she was willing to submit to a May 11, 2026 deposition, rendering the Motion unnecessary, but instead of agreeing to this alternative date, Plaintiff took a certificate of non-appearance and filed the Motion. (Opp'n, at pp. 3-4.)

In Reply, Plaintiff argues that it would have been speculative to assume Meza would appear for a May 11, 2026 deposition after having served objections to all prior deposition notices. (Reply, at p. 4.)

The Court notes that discovery disputes between the parties have been ongoing. While accepting a May 11, 2026 deposition date might have resolved the scheduling issue without court intervention, given the prior discovery issues in this matter, the Court acknowledges Plaintiff's position that a wait-and-see approach might also have needlessly delayed Plaintiff's obtaining relevant discovery.

The Court accordingly finds that any deficiency in Plaintiff's meet and confer efforts does not warrant outright denial of the Motion.

B.

Motion to Compel Deposition

Plaintiff contends that Meza failed to appear for the March 31, 2026 deposition without asserting a valid objection under the Discovery Act. (Mot., at p. 7.) Plaintiff's Third Amended Notice of Deposition, served on Meza on February 26, 2026, notices a deposition to take place at 2:00 p.m. on March 31, 2026, and requests that Meza produce 14 categories of documents. (Booker Decl., Exh. 6.)

Meza does not dispute that the deposition was properly noticed. Instead, Meza argues that the statutory prerequisite to bringing the Motion is absent because Meza timely served a valid objection under Code of Civil Procedure section 2025.410 based on Meza's counsel's unavailability. (Opp'n, at p. 5.)

An objection under Code of Civil Procedure section 2025.410 must be served at least three days prior to the date of the deposition and must

specify what error or irregularity under sections 2025.210 et seq. serves as the basis for objection. (Code Civ. Proc., § 2025.410, subd. (a).) Errors or irregularities that may serve as the basis for objection include, inter alia, failure to name each deponent, failure to specify with reasonable particularity the category of materials to be produced by the deponent, failure to serve every party who has appeared in the action, and specification of a location that is not in the county where the action is pending. (Code Civ. Proc., §§ 2025.220 et seq.) Unavailability of counsel is not an “error or irregularity” in the deposition notice that constitutes valid objection under Code of Civil Procedure section 2025.410. (Ibid.)

The Court accordingly finds that Meza failed to appear for the March 31, 2026 deposition without serving a valid objection under section 2025.410.

The Court therefore GRANTS the Motion to compel Meza's appearance at deposition.

C.

Requests for
Production of Documents at Deposition

The Court notes that Plaintiff's Third Amended Notice of Deposition includes 14 requests for production of documents. (Booker Decl., Exh. 6.) Meza objects to each request for production as duplicative of other discovery propounded by Plaintiff, also incorporating by reference Meza's substantive responses to Plaintiff's Request for Production of Documents, Set One. (Id., Exh. 7.)

The Motion is styled solely as a motion to compel Meza's attendance and testimony at deposition. It does not include any argument addressing the dispute over document production, and Plaintiff's Separate Statement does not provide factual and legal reasons compelling production. (See Cal. Rules of Court, rule 3.1345.) The Court thus has no basis to adjudicate any dispute over document production, and its ruling herein is limited to compelling Meza's attendance and testimony at deposition.

D.

Request for Sanctions

If a motion to compel a party deponent to appear for a deposition is granted, the court must impose a monetary sanction “in favor of the party who noticed the deposition and against the deponent ... unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Plaintiff seeks monetary sanctions against Meza and her attorney of record in the amount of \$4,092.00.

Although the Court has found that Plaintiff is obligated to appear at deposition, Meza’s assertion that Plaintiff contributed to the scheduling difficulties is well taken. The evidence adduced establishes that Meza was prepared to appear at the January 9, 2026 deposition, her objections directed only toward the production of documents and not the appearance itself. (Booker Decl., Exh. 3, at p. 1 [“Defendant will produce the deponent on the day, time, and place noticed.”].) Scheduling issues with Meza and her counsel only arose upon service of the amended deposition notices, and rather than seeking a subsequent date that was mutually agreeable, Plaintiff sought immediate Court intervention after learning that Meza’s counsel was engaged in trial on March 31, 2026, rebuffing Meza’s counsel’s efforts to resolve scheduling informally. The Court finds that, under the circumstances, the imposition of sanctions would be unjust.

The Court thus DENIES the request for sanctions.

CONCLUSION

The Court GRANTS Plaintiff Elizabeth Chacon Flores’s motion to compel Defendant Olivia Alvarez Meza to attend and testify at deposition. Defendant Olivia Alvarez Meza is ordered to appear for deposition on the first mutually agreeable date between the parties, deposition to take place within 30 days.

The Court DENIES Plaintiff’s request for sanctions.

Moving party to give notice.